

The complaint

Mr D complains that esure Insurance Limited turned down a claim he made on his home insurance policy.

Mr D's represented by Mrs D.

What happened

In June 2019, Mr and Mrs D got in touch with esure to make a claim for water damage to their roof and a bedroom. Esure appointed a surveyor to go and inspect the damage.

The surveyor didn't think the damage to the roof or ceiling was down to storm. He thought the roof had been deteriorating over time. He didn't think the bedroom damage was down to a single event of water ingress. Mr D's policy didn't cover damage that happened over time. And esure didn't think the internal damage was down to a one-off, unexpected event. So it turned down Mr D's claim.

Mr D wasn't happy with esure's decision, so Mrs D asked us to look into his complaint. They said they'd been told the claim was turned down because their roof didn't have any missing slates and because of damaged flashing.

Our investigator didn't think Mr D's complaint should be upheld. He'd considered the surveyor's report and the photos they'd taken during their visit. He acknowledged there were storm conditions around the time of the claim. But he didn't think the damage to Mr and Mrs D's roof was consistent with storm damage. And he thought the internal photos appeared to show mould growth. So he felt it was more likely that water had been getting into the property over time. He didn't think Mr D's claim was covered by the accidental damage cover he had either. That's because the policy excludes damage which happens over time.

Mr D disagreed. Mrs D said she remembered heavy rain, which caused her ceiling to collapse. This led to her ceiling, furniture and carpets being damaged. She said that people take out insurance to cover this kind of situation.

The complaint's been passed to me to decide.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint. Having done so, I think it was fair for esure to turn down Mr D's claim. I'll explain why.

I should first explain insurers set out a list of the 'insured events' that they cover in insurance policies. These might include storm, theft, fire, flood etc. In this case, esure considered Mr D's claim under the 'storm' and accidental damage sections of the policy. That's because Mr D thought the damage was caused by heavy rain. So we've also considered whether it was

fair for esure to turn down Mr D's claim under these sections.

When we look at complaints about storm damage, there are three questions that we need to ask:

- Were there storm conditions on or around the date of the claim?
- Is the damage consistent with storm damage?
- Were the storm conditions the main cause of the damage?

If the answer to any of these questions is "no" then the claim won't succeed.

Were there storm conditions on or around the time of claim?

I've carefully considered the weather conditions around the time of the claim. It's clear there were storm force winds and very heavy rain. And esure accepts there were prevailing storm conditions. So I'm satisfied the answer to the first question is 'yes'.

Is the damage consistent with storm damage?

Water ingress into a property causing internal water damage following heavy wind and rain *may* sometimes be consistent with storm damage. Generally, though, we might expect to see missing or dislodged roof tiles following storm winds.

Having looked at the surveyor's photos of the roof, I can't see any evidence of missing or dislodged slates, or any areas of obvious storm damage.

Were the storm conditions the main cause of the damage?

I've looked very carefully at the report from esure's surveyor to establish whether the storm was the main cause of the damage. That's because it's the only expert evidence I have.

The surveyor didn't think the storm was the main cause of the damage. He found the roof damage was caused by an '*unknown defect*' but he maintained it wasn't down to storm. He found the internal damage was caused by '*rainwater ingress over a period of time.*'

It appears that the surveyor did undertake a full check of Mr and Mrs D's home. The photos show the roof in detail, together with pictures of the internal damage. He also carried out moisture readings. So I've placed significant weight on his report. And Mr and Mrs D haven't provided me with any independent expert evidence to counter the surveyor's findings.

I don't think there's enough evidence to show, on balance, it's most likely the main cause of the damage was storm. The photos of the internal damage suggest water might've been getting in for some time. That's because there appears to be some cracking to the plasterwork and what appears to be mould growth. There also looks like an area of the ceiling which'd been repainted – which esure felt might show previous repairs to the ceiling. This might indicate that water had been getting in gradually, rather than a one-off event of storm.

Taking the surveyor's report and photos together with the fact the roof damage isn't consistent with what we might usually expect to see in cases of storm damage, I think it was fair for esure to decide the damage wasn't down to storm. I think it's more likely the heavy rainfall simply highlighted existing issues with the roof.

Overall, this means I don't think the storm was the main cause of the damage. So I think it's

fair for esure to turn down Mr D's claim under this section of the policy.

I've also gone on to consider whether the claim should be covered under the accidental damage section. Esure considers accidental damage to be a single, unexpected and unintended event. I accept that the damage to Mr and Mrs D's home was unexpected and unintended. But given the surveyor found water had been getting in over a period of time, I don't think I can fairly say this was a single event of water ingress.

Mr D's policy also includes some general exclusions which set out things the policy doesn't cover. Two of these are damage caused by wear and tear and damage which occurs gradually, over time. In this case, given the surveyor's evidence, it seems the damage has been ongoing over time. So I don't think this claim is covered by the accidental damage section of the policy.

Overall, while I sympathise with Mr D's position, I think it was fair for esure to turn down his claim. So I'm not telling it to pay him anything.

My final decision

For the reasons I've given above, my final decision is that I don't uphold Mr D's complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr D to accept or reject my decision before 8July2020.

Lisa Barham
Ombudsman